

FOURTH SCHEDULE.

Section 35.

MISCELLANEOUS ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
8 & 9 Geo. 5. c. 40.	The Income Tax Act, 1918.	Subsection (6) of section one hundred and eighty-seven.
10 & 11 Geo. 5. c. 18.	The Finance Act, 1920	As from the first day of January, nineteen hundred and thirty-seven, paragraph two of the Second Schedule.
12 & 13 Geo. 5. c. 17.	The Finance Act, 1922	In subsection (6) of section twenty-one, the words from "A company shall be deemed to be under the control" to the end of the subsection.
22 & 23 Geo. 5. c. 25.	The Finance Act, 1932	Subsections (1) and (4) of section one.
25 & 26 Geo. 5. c. 24.	The Finance Act, 1935	Section six.

CHAPTER 35.

An Act to amend the enactments relating to solicitors, and for purposes connected therewith.
[16th July 1936.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

PART I.

AMENDMENTS OF PART II OF THE SOLICITORS ACT, 1932.

Articles of Clerkship.

1.—(1) No solicitor who has not at some time been in continuous practice as a solicitor for a period of five years shall, without the special leave in writing of the Society, take any articled clerk.

Solicitor to practise five years before taking articled clerk.

PART I.
—cont.

(2) Service by an articled clerk to a solicitor who has taken him in contravention of the provisions of subsection (1) of this section shall not, unless the Master of the Rolls sees fit to direct otherwise, be deemed to be good service by the clerk under his articles.

Evidence
of good
character
and suit-
ability by
persons
entering
into articles.

2.—(1) Not less than six weeks before any person becomes bound by articles of clerkship he shall give notice to the Society of his intention so to do, and shall furnish the Society with such evidence as to his character, and his fitness and suitability for service under articles, as the Society may by regulations require.

(2) The Society, if they are satisfied with the evidence so furnished, shall issue to the person in question their written consent to his entry into articles.

22 & 23
Geo. 5. c. 37.

(3) The Registrar shall refuse to register any articles produced to him under section sixteen of the Solicitors Act, 1932, (in this Act referred to as “ the principal Act ”) unless the articles are accompanied by a consent issued under this section and dated not earlier than six months before the date of the production of the articles.

(4) Service by a clerk under articles of which registration has been refused under this section shall not be deemed to be good service by the clerk under his articles.

Amendment
of Sche-
dule I
of the
principal
Act as to
term of
service
under
articles.

3.—(1) The following paragraph shall be substituted for paragraph seven of the First Schedule to the principal Act:—

“(7) The Master of the Rolls, with the concurrence of the Lord Chancellor and the Lord Chief Justice, or of one of them, may make regulations directing that—

(a) in the case of any person who has passed any examination held in or by a university specified in the Second Schedule to this Act or any college or educational institution specified in the regulations, the term shall be four and a half years;

(b) in the case of any person who has passed any such two of the said examinations as may be specified in that behalf in the regulations, the term shall be four years; and

(c) in the case of any person who, before entering into articles, has attended a course of legal instruction specified in the regulations and has passed any examination so specified as a qualifying examination in relation to that course, the term shall be four years."

PART I.
—cont.

(2) Nothing in this subsection shall affect any person who immediately before the commencement of this Act was by virtue of having passed any examination entitled to claim the benefit of the said paragraph seven as originally enacted.

4. The fee payable to the Registrar by a person producing articles for registration under subsection (1) of section sixteen of the principal Act shall be twenty shillings, and accordingly in subsection (3) of the said section for the word "five" there shall be substituted the word "twenty".

Fee payable
on regis-
tration of
articles.

5.—(1) If—

(a) during the term of any articles either the clerk or the solicitor has been continuously absent from the solicitor's place of business for a period of three months or longer; or

Power of
Society to
discharge
articles in
certain
cases.

(b) the Society are for any other reason of opinion that the articles ought to be discharged,

the Society may, on the application either of the solicitor or of the clerk, discharge the articles upon such terms, including terms as to return of premium, as they think fit, and determine what period, if any, of service by the clerk under the articles shall be deemed to be good service :

Provided that so much of any period during which a clerk is absent from the solicitor's place of business as is ascribable to any such employment as is mentioned in section twenty of the principal Act (which relates to the reckoning of service as a pupil with the solicitor's London agent or with a barrister) shall be left out of account for the purposes of this subsection.

(2) In subsection (1) of section twenty-five of the principal Act (which enables a clerk to be bound by fresh articles in certain cases, including the case where his

PART I.
—cont.

articles are discharged by the High Court), after the words “by the High Court” there shall be inserted the words “or the Society”, and in subsection (2) of the said section the reference to the foregoing provisions of Part II of the principal Act with respect to the registration of articles shall be construed as including a reference to the provisions of this Part of this Act with respect to the registration of articles.

Examinations.

Amend-
ments as to
exemption
from
preliminary
examina-
tion.

6.—(1) In paragraph (a) of subsection (1) of section twenty-eight of the principal Act (which exempts from the preliminary examination persons who have taken degrees in arts or law at certain universities), for the words “or law” there shall be substituted the words “law or science”.

(2) In paragraph (b) of the said subsection (1) (which exempts from the preliminary examination persons who have passed matriculation examinations at certain universities, or examinations accepted by those universities as exempting from matriculation examinations), after the words “or any examination accepted by any such university as exempting from those examinations” there shall be inserted the words “and approved by the Society”.

(3) A person shall not, by virtue of paragraph (b) of subsection (1) of the said section twenty-eight or by virtue of subsection (3) of that section, be exempted from the preliminary examination by reason that he has passed, at any date after one year has expired from the commencement of this Act, any examination, unless Latin was one of the subjects of the examination and he satisfied the examiners in that subject.

(4) Nothing in this section shall affect the power of the Master of the Rolls and the Lord Chief Justice under section twenty-nine of the principal Act to grant special exemptions from the preliminary examination, or any part thereof.

Amend-
ments of
s. 32 of the
principal
Act as to

7.—(1) In the case of a person articulated after the commencement of this Act, the attendance at a course of legal education at a law school required by section thirty-two of the principal Act shall, except with the consent in

writing of the Society, commence not later than fifteen months after the execution of his articles, and if any person fails to comply with the provisions of this subsection the period which elapses between the expiration of the said period of fifteen months and the date on which he commences his attendance at such a course shall be left out of account in computing, for the purposes of the principal Act, the terms during which he has served under his articles.

PART I.
—cont.
attendance
at a law
school
before final
examina-
tion.

For the purposes of this subsection a person shall be deemed to commence to attend at a course on the first day of the first term during which he complies with the requirements of the Society as to attendance at such a course, and the head of any law school provided by the Society, or approved by the Society for the purposes of the said section thirty-two, shall at the end of any term, if required by any person so to do, certify, if it be the fact, that that person has during that term complied with the said requirements of the Society, and certify also the date of the commencement of that term, and the certificate shall be conclusive evidence for the purposes of this subsection of the facts therein certified.

(2) The Society may by regulations require persons attending courses of legal education in pursuance of the said section thirty-two to submit themselves to such tests at the expiration of such periods as may be specified in the regulations, for the purpose of satisfying the Society of their diligence and application during those periods, and if on any such test a person fails so to satisfy the Society, the Society may refuse to count the whole or any part of the period to which that test relates as part of the period of one year mentioned in the said section thirty-two.

(3) The said section thirty-two shall not apply—

- (a) to a person who has been called to the Bar in England or Northern Ireland, or has been admitted a member of the Faculty of Advocates in Scotland, or is a solicitor in Scotland, or is enrolled as a solicitor in Northern Ireland;
- (b) to a person articled after the commencement of this Act who proves to the satisfaction of the Society, or on appeal to the satisfaction of

PART I.
—*cont.*

the Master of the Rolls, that he has taken a degree at any university specified in the Second Schedule to the principal Act after passing any such examination in law as may be specified in regulations to be made by the Society under section twenty-six of the principal Act.

Paragraph (i) of proviso (c) to subsection (1) of the said section thirty-two (which exempts certain persons who have taken degrees in law from the provisions of the section) shall cease to have effect except as respects persons articulated before the commencement of this Act.

(4) The Society shall supply a list of law schools provided by the Society, or for the time being approved by the Society for the purposes of the said section thirty-two, to any person who applies for such a list, and to every person to whom a consent to enter into articles is issued by the Society under the foregoing provisions of this Act.

Subsection (2) of the said section thirty-two shall cease to have effect.

*General.*Supp
mental.

8. The provisions of this Part of this Act shall have effect as if they formed part of Part II of the principal Act, and the provisions of subsections (4) and (5) of section twenty-six of the principal Act shall apply to regulations made by the Society under this Part of this Act as they apply to the regulations made under that section.

PART II.

MISCELLANEOUS.

Production
of orders of
Court to
Registrar,
and power
of Registrar
to draw up
certain
orders.

9.—(1) Where on an application made by any person under the principal Act an order is made by the High Court or the Court of Appeal that the name of a solicitor be removed from, or struck off, the Roll, or that a solicitor be suspended from practice, the proper officer of the Court shall forthwith send to the Registrar a copy of the order, and the Registrar shall enter a note thereof on the Roll in connection with the name of the solicitor and, where the order so directs, shall remove, or strike off, the name.

(2) Section eleven of the principal Act shall cease to have effect.

PART II.
—*cont.*

(3) In section ten of the principal Act (which relates to the power of the Registrar to draw up orders), after the words “ the High Court ” there shall be inserted the words “ or the Court of Appeal ”.

10. Subsection (1) of section thirty-seven of the principal Act, which provides that the declaration required to be delivered to the Registrar by, or by an agent of, a person applying for a practising certificate may, if the applicant’s place of business is more than twenty miles from London, be signed by his London agent on his behalf, shall have effect as if for the words “ more than twenty miles from London ” there were substituted the words “ not within ten miles from the General Post Office in the City of London.”

Amendment
of s. 37 (1)(a)
of the
principal
Act.

11. In section thirty-eight of the principal Act (which confers on the Registrar a discretion to refuse a practising certificate in certain special cases), after paragraph (c) there shall be inserted the following paragraphs—

Amendment
of s. 38 of
the prin-
cipal Act.

“ or

(d) having failed to obtain a practising certificate within the twelve months next following the date of his admission to the Roll, first applies for such a certificate; or

(e) applies for a practising certificate whilst he is a person to whom the powers and provisions of Part IV of the Lunacy Act, 1890, relating to management and administration apply.”

53 & 54 Vict.
c. 5.

12. Proceedings in respect of an offence under section forty-eight of the principal Act (which relates to unqualified practitioners preparing certain documents for the purposes of the Land Registration Act, 1925), or an offence under section forty-nine of the said Act (which relates to unqualified practitioners acting in the preparation of papers for probate), may, notwithstanding anything in the Summary Jurisdiction Acts, be brought at any time within two years next after the commission of the offence or within six months next after the first discovery thereof by the prosecutor, whichever period is the shorter.

Extension
of time for
instituting
proceedings
in cases of
certain
offences.
15 & 16
Geo. 5. c. 21.

PART II.

—*cont.*

Provisions
as to
service of
documents
at solicitor's
place of
business.

13.—(1) For the purpose of facilitating the service of notices and other documents, every solicitor who holds, or has applied for, a practising certificate shall give notice to the Registrar of any change in his place or places of business within fourteen days after the date on which the change takes effect, and every such notice shall be deemed to be, and shall be recorded by the Registrar as, an amendment of the latest declaration delivered by the solicitor to the Registrar under section thirty-seven of the principal Act.

(2) Any notice or other document which is required or authorised by or under the principal Act to be served on a practising solicitor may, without prejudice to any other method of service, be served by sending it in a registered letter addressed to him at any place specified as his place of business, or one of his places of business, in the latest declaration so delivered by him as amended by any such notice as aforesaid.

Evidence in
proceedings
before dis-
ciplinary
committee.

14.—(1) For the removal of doubts it is hereby declared that an application to, or an inquiry or other proceeding before, a disciplinary committee appointed under section four of the principal Act, or under any corresponding provision in the enactments relating to solicitors in Scotland and Northern Ireland, is a “legal proceeding” within the meaning of that expression as used in the Bankers Books Evidence Act, 1879.

42 & 43 Vict.
c. 11.

(2) This section extends to Scotland and Northern Ireland.

Evidence
as to
solicitors in
Scotland.

15. For the purposes of the principal Act—

- (a) a letter purporting to be signed by or on behalf of the Registrar of Solicitors in Scotland stating that a person specified therein is or is not a solicitor in Scotland shall be evidence that that person is or, as the case may be, is not a solicitor in Scotland; and
- (b) a letter purporting to be signed by or on behalf of the Comptroller of Stamps and Taxes at Edinburgh stating with respect to a person and a period specified in the letter that no stamped certificate covering any part of that period was issued in Scotland to that person

PART II.

—*cont.*54 & 55 Vict.
c. 39.

under section forty-seven of the Stamp Act, 1891, shall be evidence that that person was not during any part of that period a duly certificated solicitor in Scotland.

16. The amendments specified in the Schedule to this Act, being amendments consequential on the passing of the Solicitors (Scotland) Act, 1933, shall be made in the provisions of the principal Act referred to in that Schedule.

Amendments of principal Act consequential on the passing of the Solicitors (Scotland) Act, 1933.
23 & 24 Geo. 5.
c. 21.

17.—(1) This Act may be cited as the Solicitors Act, 1936, and the Solicitors Acts, 1932 to 1934, and this Act shall be construed together as one Act and may be cited together as the Solicitors Acts, 1932 to 1936.

Short title, construction, commencement and extent.

(2) This Act shall come into operation on the first day of January, nineteen hundred and thirty-seven.

(3) This Act, save in so far as the contrary is expressly provided, shall not extend to Scotland or Northern Ireland.

SCHEDULE.

Section 16.

AMENDMENTS OF THE PRINCIPAL ACT CONSEQUENTIAL ON THE PASSING OF THE SOLICITORS (SCOTLAND) ACT, 1933.

In subsection (6) of section thirty-five, after the words "as a law agent" there shall be inserted the words "or as a solicitor," and for the words "remaining a law agent" there shall be substituted the words "remaining a solicitor."

In subsection (1) of section forty-seven, for the words "law agent" there shall be substituted the words "solicitor in Scotland."

In subsection (1) of section eighty-one, after the definition of "Solicitor" there shall be inserted the following definition:

" 'Solicitor in Scotland' means a person enrolled or deemed to have been enrolled as a solicitor in pursuance of the Solicitors (Scotland) Act, 1933."

In paragraph 5 of Schedule 1, for the words "or as a solicitor in the Supreme Courts of Scotland, or as a Procurator before any of the Sheriff Courts of Scotland" there shall be substituted the words "or become a solicitor in Scotland."